

NextGear had security interests in the vehicles in Bay Motors' inventory. In reaching this conclusion, the Court noted that Bay Motors executed and delivered to NextGear a written Demand Promissory Note and Security Agreement for the flooring of Bay Motors' inventory. (Smith Decl. iso Plaintiff's Ex Parte Application for Writ of Possession at ¶ 7, Ex. 1.) Under the Note, "Collateral" included but was not limited to "all of [Bay Motor]'s assets and properties, wherever located, including, without limitation, all equipment of any kind or nature; all vehicles and vehicle parts; all Inventory now owned or hereafter acquired, including, without limitation, all Lender Financed Inventory now owned or hereafter acquired[.]" (*Id.* at Ex. 1 at 1 of 12, ¶ 2(a).) Defendant in C24-02590 conceded that "[t]he defendants did enter into a contract with the plaintiff in which the defendant car dealership borrowed money from the plaintiff that was used to purchase vehicles that were sold in the regular course of the defendant dealership." (Aminzada Decl. at ¶ 3.) Finally, to perfect its security interest in the Collateral, NextGear filed UCC-1 Financing Statements in California pursuant to the Uniform Commercial Code. (Smith Decl. iso Plaintiff's Ex Parte Application for Writ of Possession at ¶ 8; Exhibit 2.) In that same order on the motion to quash in C24-02590, the Court concluded that Plaintiff Area Target was not a buyer in the ordinary course of business, such that they took the Purchased Vehicles free of a security interest.

Defendant has met its initial burden with respect to Plaintiff's claim and delivery cause of action. And, as Plaintiff has failed to file any opposition to the Motion, the Court finds that it has failed to meet its responsive evidentiary burden. Accordingly, the unopposed motion is granted as to the third cause of action.

(4) Declaratory Relief and (5) Injunctive Relief

Plaintiff's declaratory relief and injunctive relief causes of action are also premised on their allegation that they hold title to the Purchased Vehicles free and clear of any security interests. However, as discussed above, Defendant NextGear holds a security interest in the Purchased Vehicles, and Plaintiff Area Target was not a buyer in the ordinary course of business. Defendant has met its initial burden with respect to Plaintiff's declaratory relief and injunctive relief causes of action. And, as Plaintiff has failed to file any opposition to the Motion, the Court finds that it has failed to meet its responsive evidentiary burden. Accordingly, the unopposed motion is granted as to the third cause of action.

4. 9:00 AM CASE NUMBER: C25-00707
CASE NAME: JOHN MIXON VS. BYRON UNION SCHOOL DISTRICT
HEARING ON DEMURRER TO: RE 1ST AMENDED COMPLAINT
FILED BY: BYRON UNION SCHOOL DISTRICT
TENTATIVE RULING:

Defendant Byron Union School District ("Defendant") brings this demurrer to the First Amended Complaint ("FAC") of plaintiff John Mixon ("John Sr."), individually and as Guardian Ad Litem for John Mixon ("John Jr."), Ja'leyah Mixon ("Ja'leyah"), and Ja'niyah Mixon ("Ja'niyah" together with John Jr., John Sr., and Ja'leyah, "Plaintiff").

For the reasons discussed below, the Court **OVERRULES** Defendant's demurrer to Plaintiff's First Amended Complaint based on nonjoinder and **SUSTAINS** Defendant's demurrer to Plaintiff's second cause of action for intentional infliction of emotional distress, fourth cause of action for retaliation in violation of Labor Code section 1102.5, and fifth cause of action for retaliation in violation of

Education Code sections 44110-44114 et seq. Plaintiff may file and serve a second amended complaint within 10 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (John Laughlin Decl., ¶¶ 2-7; Code Civ. Proc., § 430.41, subd. (a)(3)(A).)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “We also accept as true facts which may be inferred from those expressly alleged.” (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges “the sufficiency of the allegations in a complaint as a matter of law,” not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (*Id.*, at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a “court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice.” (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) “[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff.” (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

Where a pleading includes a general allegation, such as an allegation of an ultimate fact, as well as specific allegations that adds *details* or *explanatory facts*, it is possible that a conflict or inconsistency will exist between the general allegation and the specific allegations. To handle these contradictions, California courts have adopted the principle that specific allegations in a complaint control over an inconsistent general allegation.” (*Perez v. Golden Empire Transit District* (2012) 209 Cal.App.4th 1228, 1235-1236, italics added.) In ruling upon demurrers, courts treat as being true “not only the complaint’s material factual allegations, but also facts that may be implied or inferred from those expressly alleged.” (*Poseidon Development, Inc. v. Woodland Lane Estates* (2007) LLC, 152 Cal.App.4th 1106, 1111-1112.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) “However, leave to amend should not be granted where, in all probability, amendment would be futile.” (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

Requests for Judicial Notice

Defendant asks the Court to take judicial notice of Plaintiff’s First Amended Complaint and exhibits 4, 5, 6, and 7 to the First Amended Complaint. The Court **grants** Defendant’s requests for judicial notice.

(Evid. Code, § 452, subd. (d).)

Background: Facts Alleged in FAC

Plaintiff filed this action on March 12, 2025. The currently operative First Amended Complaint (“FAC”) was filed on January 21, 2026. The FAC alleges claims against Defendant for: (1) negligence; (2) intentional infliction of emotional distress [“IIED”]; (3) negligent supervision; (4) retaliation in violation of Labor Code section 1102.5; and (5) retaliation in violation of Education Code sections 44110-44114 et seq.

Plaintiff alleges that Defendant repeatedly failed to enforce restraining orders against Julie Burns (“Ms. Burns”), the mother of John Jr., Ja’leyah, and Ja’niyah (together, the “Children”). (FAC, ¶ 7.) Despite being provided with copies of the restraining orders, Defendant permitted “repeated and unfettered access to the children at school premises.” (*Id.* at ¶ 8.) Despite this conduct occurring as far back as 2023, the focus of the FAC is on actions by Ms. Burns that took place subsequent to February 16, 2024. (*Id.* at ¶ 9.) This conduct essentially includes 4 instances of Ms. Burns visiting the school of the Children and either attempting to visit them or leaving candy, balloons, gifts or notes for them. (*Id.* at ¶ 14.)

On February 29, 2024, Defendant terminated Plaintiff John Sr. from employment as a basketball coach for Excelsior Middle School. (FAC, ¶16.) At that time, he had reported at least five incidents in which Defendant allowed Ms. Burns to contact the Children, allegedly in violation of a restraining order. (*Ibid.*) Further, on February 4, 2025, Defendant disclosed a behavioral issue with John Jr. to Ms. Burns and she reported Plaintiff to Child Protective Services, who visited him the next day. (*Id.* at ¶ 22.) After interviewing the Children, CPS closed the case against Plaintiff. (*Ibid.*)

Plaintiff seeks compensatory damages, general damages, injunctive relief, declaratory relief, costs, and punitive damages. (FAC, pp. 11-13.)

Discussion

Moving Papers

Defendant argues that the FAC improperly fails to join Ms. Burns as she is a necessary party to this action because adjudication of Plaintiff’s claims for relief will significantly affect her parental rights and because Defendant may, in her absence, face inconsistent obligations related to her maternal rights. (MPA ISO Demurrer, pp. 4-7.) Defendant further argues that the claim for IIED fails because that claim is not allowed to be maintained against a government entity like itself and Plaintiff has not pled outrageous conduct. (*Id.* at pp. 8-10.) Further, the FAC does not contain a factual allegation that any employee acted with the intention or reckless disregard of causing emotional distress to Plaintiff. (*Id.* at ¶ 10.)

Defendant argues that the fourth and fifth causes of action for retaliation fail because both claims exceed the scope of the Government Claims Notice filed in relation to this action. (MPA ISO Demurrer, pp. 11-12.) Defendant argues that the “Ongoing Issues” section of allegations in the FAC are not tied to any claims in the FAC and to the extent they are intended to be, they are conclusory and vague. (*Id.* at ¶¶ 12-14.)

Opposition

Plaintiff argues that Ms. Burns is neither a necessary nor an indispensable party to this action, and that the Court can grant complete relief to Plaintiff without Ms. Burns being a party. (Opposition, pp. 3-6.) Plaintiff also argues that Defendant's argument relies on disputed facts and that Plaintiff seeks enforcement of a court order, not a modification of Ms. Burns's rights. (*Id.* at pp. 4-6.) Plaintiff further contends that his retaliation claims fall within the scope of his government claims because they arise from the same fundamental operative facts. (*Id.* at pp. 6-8.)

Plaintiff then asserts that the "Ongoing Issues" section of the FAC is proper as it relates to Defendant's continuing course of misconduct and Plaintiff's other allegations. (Opposition, pp. 9-10.) With respect to his IIED claim, Plaintiff argues that it is properly pleaded because a reasonable trier of fact could conclude that the conduct was extreme and outrageous and because Defendant's challenge to this claim improperly asks the Court to resolve factual issues at the pleading stage. (*Id.* at pp. 10-11.)

Reply

Defendant reasserts on reply that Plaintiff's retaliation claims are barred because they exceed the scope of the government claim and distinguishes cases relied on by Plaintiff, including *Stockett v. Association of California Water Agencies Joint Powers Ins. Auth.* (2004) 34 Cal.4th 441, and *White v. Superior Court* (1990) 225 Cal.App.3d 1505. (Reply, pp. 2-5.) Defendant also contends that any actions that occurred prior to February 16, 2024, six months prior to Plaintiff filing the government claim on August 16, 2024, are not relevant to the claims asserted that were subject to a timely government claim. (*Id.* at pp. 5-6.) Defendant further states that Plaintiff cannot support his IIED claim on untimely allegations and that Plaintiff did not plead this claim properly because he pled that Defendant acted with a reckless disregard for the psychological well-being of Plaintiff's children. (*Id.* at pp. 6-8.) Finally, Plaintiff argues that the nonjoinder requires the Court to sustain the demurrer as to the injunctive relief sought and that it would be improper to order injunctive relief that "is directed at controlling Ms. Burns' conduct." (*Id.* at pp. 8-10)

Analysis

Joinder

"Whether a party qualifies as indispensable is ordinarily treated as a matter where the trial court has a large measure of discretion in weighing factors of practical realities and other considerations." (*Kaczorowski v. Mendocino County Bd. of Supervisors* (2001) 88 Cal.App.4th 564, 568.)

A person who is subject to service of process and whose joinder will not deprive the court of jurisdiction over the subject matter of the action shall be joined as a party in the action if (1) in his absence complete relief cannot be accorded among those already parties or (2) he claims an interest relating to the subject of the action and is so situated that the disposition of the action in his absence may (i) as a practical matter impair or impede his ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise

inconsistent obligations by reason of his claimed interest.

(Code Civ. Proc. § 389(a).)

Here, Defendant asserts that “Burns is a necessary party to the action because adjudication of Plaintiffs’ claims for relief with necessarily and significantly affect her rights and because the District may, in her absence, face inconsistent obligations related to her maternal rights.” (MPA ISO Demurrer, p. 5-7.) Plaintiff’s requests for injunctive relief essentially seek for Defendant to implement a policy for enforcing restraining orders when a parent or guardian of a student has a restraining order preventing a parent from contacting their children. (FAC, pp. 11-12; Exh. 3.) While Ms. Burns is not required to stay away from the Children’s school, she is seemingly required to stay 100 yards away from John Jr., and is not to contact the Children except as identified in the Court Ordered Parenting Plan, which allows contact and visitation under certain circumstances. (FAC, Exh. 3.) This lawsuit will not change or modify Ms. Burns’ rights to see or contact the Children and will not modify or alter any existing lawful restraining orders. Any inconsistent obligations Defendant has concerns over are not clear at this time as there will be no modification of Ms. Burns’ rights by this lawsuit. Determining any obligations on the part of Defendant vis-a-vis the restraining order would not raise the specter of Defendant having inconsistent obligations. Thus, the Court finds at this time there is no non-joinder of any required parties.

“A joinder question should be decided with reasonable promptness, but decision may properly be deferred if adequate information is not available at the time. Thus the relationship of an absent person to the action, and the practical effects of an adjudication upon him and others, may not be sufficiently revealed at the pleading stage; in such a case it would be appropriate to defer decision until the action was further advanced . . .” (*Union Carbide Corp. v. Superior Court* (1984) 36 Cal.3d 15, 22.) If circumstances or facts show at any later point that this decision should be revisited, this is subject to further review.

With respect to Defendant’s argument that “Plaintiffs’ nonjoinder of Burns requires sustaining the demurrer as to the injunctive relief sought” (Reply, p. 8), this cannot be done because demurrers need to go to an entire cause of action. (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119 [“A demurrer must dispose of an entire cause of action to be sustained.”].)

The Court will overrule Defendant’s demurrer based on non-joinder.

IIED

“A cause of action for intentional infliction of emotional distress requires: (1) extreme and outrageous conduct by appellants with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the appellants’ outrageous conduct.” (*Belen v. Ryan Seacrest Productions, LLC* (2021) 65 Cal.App.5th 1145, 1164.)

Plaintiff argues that this claim is properly pled because Defendant was repeatedly provided with valid domestic violence restraining orders “and nevertheless repeatedly permitted Ms. Burns to access school grounds and contact the protected children, culminating in the incident where she entered campus disguised as Santa Claus and physically hugged, kissed, photographed, and filmed the minor Plaintiffs.” (Opposition, pp. 10-11.) Plaintiff argues that accepting those “allegations as true, sufficiently alleges conduct that a reasonable trier of fact could conclude was extreme and outrageous.” (*Id.* at p. 11.) Plaintiff cites *C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, for the proposition that “whether Defendant’s repeated disregard of valid court orders

after repeated notice constitutes outrageous conduct presents a factual question that cannot be resolved on demurrer.” (*Ibid.*) The Court disagrees. The *Williams* case did not involve a claim for IIED and did not involve a school that allegedly disregarded a restraining order such that a mother indirectly contacted her children, it involved “injuries to a student resulting from a teacher’s sexual assault.” (*C.A. v. William S. Hart Union High School Dist.*, *supra*, 53 Cal.4th at p. 870.)

“Conduct, to be ‘outrageous’ must be so extreme as to exceed all bounds of that usually tolerated in a civilized society. [Citation.] While the outrageousness of a defendant’s conduct normally presents an issue of fact to be determined by the trier of fact [Citation], the court may determine in the first instance, whether the defendant’s conduct may reasonably be regarded as so extreme and outrageous as to permit recovery.” (*Trerice v. Blue Cross of Cal.* (1989) 209 Cal.App.3d 878, 883]; see also *Miller v. National Broadcasting Co.* (1986) 187 Cal.App.3d 1463, 1487 [outrageous conduct is measured by the standard of the reasonable person, and not by that of a sensitive, or callous, person].)

Here, Plaintiff seeks to support the IIED claim with conduct not relevant to the claim, such as the allegations relating to Defendant allowing Ms. Burns to dress up as Santa Clause in December 2023 and hug, kiss, and photograph the Children. (Opposition, pp. 10-11.) However, the only conduct relevant to the IIED claim is the conduct that occurred subsequent to February 16, 2024. (FAC, ¶ 9 [“While the causes of actions in this FAC are based on the events occurring after February 16, 2024, earlier incidents are detailed below for context. . .”].) The conduct that is thus relevant is found in paragraph 14 of the FAC, subdivisions e, f, g, and h. With a focus on these relevant allegations which allege that Defendant allowed Ms. Burns to enter the campus and attempt to visit and visually monitor Ja’leyah and Ja’niyah, attempt to make contact with John Jr. and leave candy and balloons in the school office for John Jr., as well as allow Ms. Burns to enter Excelsior Middle School and leave gifts for all three minor children, and final instance of which Ms. Jones was allowed to enter the school and indirectly gave unauthorized gifts and handwritten notes to Ja’leyah and Ja’niyah. (FAC, ¶ 14, e-h.) The Court does not find these allegations sufficiently extreme and outrageous as to exceed all bounds of that usually tolerated in a civilized society such as to support a claim for IIED. (See *Moncada v. West Coast Quartz Corp.* (2013) 221 Cal.App.4th 768, 806 (“Liability has been found only where the conduct has been so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community.”) (internal quotes omitted).)

The Court will sustain Defendant’s demurrer to Plaintiff’s IIED cause of action.

Retaliation Claims

Plaintiff did not say anything in the government claim about John Sr. being terminated by Defendant or retaliation. (FAC, Exh. 6.) On the claim form there is a box for “Retaliation” that is not checked. (*Ibid.*) The only box that is checked is “School safety plans.” (*Ibid.*) The form asks for the dates of the alleged violations, and Plaintiff listed eight dates, none of them were the date that John Sr. was terminated. (FAC, ¶ 16, Exh 6 [Despite Defendant terminating John Sr. on February 29, 2024, the dates identified in the government claim form were: September 19, 2023, September 30, 2023, October 16, 2023, December 18, 2023, February 23, 2024, May 13, 2024, May 14, 2024, and July 7, 2024.].) For each of the eight dates Plaintiff identified, he specifically identifies conduct by Ms. Burns on all of them. (FAC, Exh. 6.) Plaintiff’s “Description of the Complaint” in the government claim asserts that:

The Bryon Union School District has allowed repeated violations of a

Court Ordered Restraining Order against Ms. Julie Burns as it relates to contact with John Mixon and minors John Mixon, Ja'Leyah Mixon, and Ja'Niyah Mixon. Administrators at Excelsior Middle School, and Timber Point Elementary School failed to take any measures to protect minors from their abuser and allowed unfettered access to children in violation of restraining order.

(FAC, Exh. 6.)

Plaintiff argues that *Stockett v. Association of Cal. Water Agencies Joint Powers Ins. Authority* (2004) 34 Cal.4th 441, "is directly analogous" to the situation here, and asserts that "there has been no 'complete shift in allegations.'" (Opposition, p. 7.) *Stockett* addresses this issue as below:

The claim, however, need not specify each particular act or omission later proven to have caused the injury. [Citation.] A complaint's fuller exposition of the factual basis beyond that given in the claim is not fatal, so long as the complaint is not based on an "entirely different set of facts." [Citation.] Only where there has been a "complete shift in allegations, usually involving an effort to premise civil liability on acts or omissions committed at different times or by different persons than those described in the claim" have courts generally found the complaint barred. [Citation.] Where the complaint merely elaborates or adds further detail to a claim, but is predicated on the same fundamental actions or failures to act by the defendants, courts have generally found the claim fairly reflects the facts pled in the complaint.

(*Stockett v. Association of Cal. Water Agencies Joint Powers Ins. Authority* (2004) 34 Cal.4th 441, 447.)

Here, the Court finds that Plaintiff's fourth cause of action for retaliation in violation of Labor Code section 102.5 and fifth cause of action for retaliation in violation of Education Code sections 44110-44114 et seq, which are both based on an allegation that "Defendants retaliated against Plaintiff MIXON by terminating his employment with Defendants" (FAC, ¶¶ 48, 54), is outside the scope of the government claim form submitted by Plaintiff to Defendant. (FAC, Exh. 6.) As *Stockett* held, "[a] complaint's fuller exposition of the factual basis beyond that given in the claim is not fatal, so long as the complaint is not based on an 'entirely different set of facts.'" Here, the fact that Defendant terminated Plaintiff is wholly missing from the government claim form. (FAC, Exh. 6.) The retaliation option on the claim form is not checked; the date of termination is not identified. (*ibid.*) This is not an elaboration or further detail; the termination is an entirely distinct fundamental wrong alleged by Plaintiff. It involves an effort to premise civil liability on an act committed at a different time than as described in the claim. (*White v. Superior Court* (1990) 225 Cal.App.3d 1505, 1511.)

This is not just pleading a different legal theory based on the same set of facts. Plaintiff argues that he is not premising liability on different events, but he is; the termination of John Sr. is a distinct legal event from the legal event consisting of Defendant not enforcing a restraining order that Defendant was put on notice for. Terminating Plaintiff is not the same underlying incident as failing to enforce a restraining order.

The Court will sustain Defendant's demurrer to Plaintiff's retaliation causes of action.

Leave to Amend

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) The Court will grant Plaintiff leave to amend.

Ruling

Based on the analysis above, the Court **OVERRULES** Defendant's demurrer to Plaintiff's First Amended Complaint based on nonjoinder and **SUSTAINS** Defendant's demurrer to Plaintiff's second cause of action for intentional infliction of emotional distress, fourth cause of action for retaliation in violation of Labor Code section 1102.5, and fifth cause of action for retaliation in violation of Education Code sections 44110-44114 et seq. Plaintiff may file and serve a second amended complaint within 10 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

5. 9:00 AM CASE NUMBER: C25-00707
CASE NAME: JOHN MIXON VS. BYRON UNION SCHOOL DISTRICT
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS COMPLAINT**
FILED BY: BYRON UNION SCHOOL DISTRICT
TENTATIVE RULING:

Defendant Byron Union School District ("Defendant") brings this motion to strike ("Motion") to the First Amended Complaint ("FAC") of plaintiff John Mixon ("John Sr."), individually and as Guardian Ad Litem for John Mixon ("John Jr."), Ja'leyah Mixon ("Ja'leyah"), and Ja'niyah Mixon ("Ja'niyah" together with John Jr., John Sr., and Ja'leyah, "Plaintiff").

For the reasons discussed below, the Court **GRANTS** Defendant's motion to strike as to the four prayers for relief seeking punitive damages and **DENIES** Defendant's motion to strike in all other regards. Plaintiff is granted leave to amend.

Meet and Confer

The meet and confer requirement has been satisfied. (John Laughlin Decl., ¶¶ 2-7; Code Civ. Proc., § 435.5, (a)(3)(A).)

Legal Standard

The Court may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc., § 436(a) and (b).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be based on a matter subject to judicial notice under Evidence Code §§ 452 and 453. (Code Civ. Proc., § 437(a) and (b).) "A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint's allegations, which are assumed to be true." (*Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].) It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)